FEDERAL CONSTITUTIONAL COURT

- 2 BVR 2660/06 -
- 2 BVR 487/07 -

In the
proceedings
concerning
the constitutional complaints

I. 1. the wife J...
as legal successor to Ms R., who died on 6 September 2009..,

Mr. R...
as legal successor to Ms R., who died on 6 September 2009..,

- Agent: Ulrich Dost, lawyer
Kurfürstendamm 74a, 10709 Berlin -

against a) the judgment of the Federal Court of Justice of 2 November 2006 - III ZR 190/ 05 -,

b) set aside the judgment of the Oberlandesgericht Köln of 28 July 2005 - 7 U 8/04 -,

c) set aside the judgment of the Landgericht Bonn of 10 December 2003 - 1 O 361/02 -

and Application for legal aid and appointment of
Mr D., lawyer

- 2 BVR 2660/06 -,

II. ...of Mrs. M...

and 33 other complainants

- Agents: Sönke Hilbrans and Wolfgang Kaleck, Rechtsanwälte, in the partnership Hummel, Kaleck
Immanuelkirchstraße 3-4, 10405 Berlin -

against a) the order of the Federal Court of Justice of 18 January 2007 - III ZR 190/05 -,

b) the judgment of the Federal Court of Justice of 2 November 2006 - III ZR 190/ 05 -,

c) set aside the judgment of the Oberlandesgericht Köln of 28 July 2005 - 7 U 8/04 -,

d) set aside the judgment of the Landgericht Bonn of 10 December 2003 - 1 O 361/02 -

- 2 BVR 487/07 -

the First Chamber of the Second Senate of the Federal Constitutional Court by

the president Voßkuhle, the
judge Gerhardt
and the judge Huber

pursuant to § 93b in conjunction with § 93a BVerfGG in the version of the announcement of 11 August 1993 (BGBl I p. 1473) unanimously decided on 13 August 2013:

The procedures are combined for a joint decision.

D., lawyer, is dismissed. The application for legal aid submitted by the appellants under I. is dismissed.

The constitutional complaints are not accepted for decision.

Reason s:

The constitutional complaints concern the question of damages and compensation 1 the obligation of the Federal Republic of Germany to compensate for the death of or injury to civilians resulting from the destruction of a bridge in the Serbian town of Varvarin on 30 May 1999 during the Allied Force air operation of the North Atlantic Treaty Organisation (NA-TO) against the Federal Republic of Yugoslavia

I.

1. the conflict between Serbs and Albanians over Kosovo reached its peak in year 2 1998 and by autumn of that year had claimed numerous lives and turned several hundred thousand people into refugees (cf. the reports of the Secretary-General of the United Nations to the UN Security Council of 4 September 1998, UN Doc. S/1998/834 and of 3 October 1998, UN Doc. S/1998/912). The United Nations Security Council repeatedly called on both parties to the conflict to end the armed conflicts and to engage in political dialogue and in particular demanded that the Federal Republic of Yugoslavia withdraw its security forces and allow the return of the refugees (see the resolutions of the United Nations Security Council of 31 March 1998, UN Doc. S/RES/1160 <1998> and of 23 September 1998, UN Doc. S/RES/1199 <1998>). NATO gave emphasis to these demands by initially threatening limited and phased air operations and issuing the corresponding orders for action in October 1998 (cf .
24. September 1998 and of 13 October 1998, reprinted in Krieger <Edited by The Kosovo Conflict and International Law, 2001, p. 289) Thereupon, the Serbian President declared to the United Nations Special Envoy his willingness to declare a ceasefire and a withdrawal of troops and accepted an observation mission.

mission of the Organisation for Security and Cooperation in Europe (UN Doc. S/1998/953, Annex). The Federal Republic of Yugoslavia also agreed to NATO's "Eagle Eye" air surveillance operation to monitor compliance with the United Nations Security Council Resolution of 23 September 1998 (UN Doc. S/1998/991, Annex). However, further outbreaks of violence and expulsions could not be prevented by these measures. In January 1999, the North Atlantic Council of NATO therefore authorized the NATO Secretary General to order air strikes against targets on the territory of the Federal Republic of Yugoslavia if necessary to avert a humanitarian catastrophe (Press Release 1999 <12> of 30 January 1999, printed in Krieger <Engl.) After the peace negotiations in Rambouillet and Paris in February and March 1999 had been broken off by the Serbian President, the NATO Secretary General instructed the Supreme Allied Commander Europe (SACEUR) to initiate air strikes against the Federal Republic of Yugoslavia with the aim of ending the violent attacks by Serbian police and army (press release 1999 <40> of 23 March 1999). March 1999, reprinted in Krieger <Edited by >, loc. cit, S. 304).

2. The German Bundestag approved the participation of the Bundeswehr in the air 3
operation "Allied Force" with reconnaissance aircraft and aircraft for electronic combat reconnaissance (so-called ECR Tornados) on 16 October 1998 (see Bundestag printed paper 13/11469; Plenary Protocol No. 13/248 of the 248th session of the German Bundestag of 16 October 1998, p. 23161 B; for details see BVerfGE 100, 266 <267>). During the operation, these aircraft were entrusted with the task of reconnaissance of the airspace as well as the detection and combat of the enemy anti-aircraft radar.

3. On 30 May 1999, two NATO fighter aircraft attacked the over 4
The bridge in the Serbian town of Varvarin, which runs along the river Morawa, was hit in two waves and destroyed by four missiles. As a result of this attack, ten people were killed and 30 injured, 17 of them seriously, all of them civilians. Aircraft of the Federal Republic of Germany were not directly involved in the destruction of the bridge, but were in action on the day of the attack.

4. The complainants are Serbian nationals who are nationals of the Federal Republic of 5
order Germany to pay compensation or reparation for the death of their relatives or for the injuries they suffered in the destruction of the bridge Whether and to what extent the German reconnaissance aircraft deployed on 30 May 1999 also secured the attack on the bridge at Varvarin has remained a matter of dispute between the complainants and the Federal Republic of Germany in specialised court proceedings.

a) The Landgericht Bonn dismissed the complainants' action with the challenged 6
judgment of 10 December 2003 (NJW 2004, pp. 525 et seq.), since the alleged infringement of

claims would find no basis either in international law or in German state liability law.

Claims for damages and compensation for pain and suffering due to a violation of international law 7

Tort would not result directly from international law or in connection with Article 25 of the Basic Law. There were no provisions of international law that granted the complainants as individuals enforceable claims to damages and pain and suffering. The traditional conception of international law as intergovernmental law did not understand the individual as a subject of international law, but only granted indirect protection by the home state. An important exception to this was the European Convention on Human Rights, to which the complainants could not, however, refer (see European Court of Human Rights, decision of the Grand Chamber of 12 December 2001, complaint no. 52207/99, NJW 2003, pp. 413 <414 et seq.) Furthermore, there is no contractual system of protection which grants the complainants individual rights and creates a procedure for their enforcement. This applied equally to the Convention on the Laws and Customs of War on Land of 18 October 1907 (IV Hague Convention - RGBl 1910 p. 107), the Geneva Convention for the Protection of Civilian Persons in Time of War of 12 August 1949 (Federal Law Gazette 1956 II p. 1586), the Additional Protocol to the Geneva Conventions of 12 August 1949 on the protection of victims of international armed conflicts of 8 June 1977 (Protocol I - Federal Law Gazette 1990 II p. 1551) and the Agreement between the Parties to the North Atlantic Treaty on the Legal Status of their Forces of 19 Ju- ni 1951 (Federal Law Gazette 1961 II p. 1190)

Nor would the complainants have any claims under the German 8

State liability law. Admittedly, international law does not exclude the possibility that the national law of a state grants the injured party a claim outside international law obligations. However, under German law, this was not the case at present. Claims for damages and compensation for pain and suffering cannot be derived indirectly from the fundamental rights because these do not in principle justify such legal consequences. Finally, the German state liability law was not applicable in the context of armed conflicts because it was overlaid by the rules of international law of war.

b) The Higher Regional Court of Cologne dismissed the appeal of the Be- 9

the challenged judgment of 28 July 2005 (NJW 2005, p. 2860 et seq.). They were entitled neither to claims under international law nor under German law.

Insofar as the complainants have based their claims directly on the 10

In any event, if the traditional conception of international law as intergovernmental law does not regard the individual as a subject of international law, but rather as a legal entity, is based on Article 3 of the Fourth Hague Convention and Article 91 of Protocol I, in each case in conjunction with the provisions of international humanitarian law serving civil protection, it is still the prevailing view, at least at present, that the traditional conception of international law as intergovernmental law does not include the individual as a subject of international law.

but only grant him indirect protection by the home State.

Claims based on fundamental rights were excluded because they did not constitute grounds for 11

and, moreover, there was no specific provision giving rise to a claim. Nor was there a claim under § 839 of the Civil Code in conjunction with Article 34 of the Basic Law. German state liability law was in principle applicable. However, the Federal Republic of Germany could not be held liable for acts that constituted a breach of official duties. It is undisputed that it did not carry out the attack; an attribution is only possible if the Federal Republic of Germany would be liable under § 830 of the Civil Code as an accomplice. Even if the German reconnaissance planes had secured the attack on the bridge of Varvarin, the Federal Republic of Germany could not be accused of such an auxiliary service. For it was not recognizable that their ignorance of the supported action - the destruction of the bridge - had at least been based on negligence. The complainants had neither explained nor was it otherwise apparent that the Federal Republic of Germany had been aware that the bridge of Varvarin was to be attacked at all on the day in question. According to the "need-to-know rule", which had been set out in detail by the defendant, each Member State of NATO had only had the knowledge that it had to have in order to carry out its tasks. Liability of the Federal Republic of Germany was also excluded in so far as it had not prevented the bridge of Varvarin from being included in the target lists of the air operations, assuming a right of veto. Such a right of veto would be of a foreign and defence policy nature, the exercise of which the Federal Government is entitled to exercise a scope of assessment and discretion which is in principle not justiciable, provided that the decision was not manifestly arbitrary or manifestly contrary to international law. However, in the abstract, bridges are always potential military targets, which is why the non-exercise of the right of veto against the inclusion of the bridge of Varvarin in the list of targets was in any case not manifestly arbitrary or manifestly contrary to international law.

c) The Federal Court of Justice dismissed the appeal directed against this 12

The Federal Court of Justice (BGHZ 169, 348 et seq.) returned the appealed judgement of 2 November 2006.

The claims asserted could not be based on 13

Article 3 of the IV Hague Agreement can still be based on Article 91 of Protocol I. Irrespective of a possible individual claim to compliance with international humanitarian law under primary law, the following claims for damages or compensation would still be due solely to the home state under these norms. Other bases for claims under international law were not evident. A referral to the Federal Constitutional Court under Article 100.2 of the Basic Law was not necessary because an individual claim under international law was not clearly affirmed in the practice of international and national courts and there were also no other indications that such individual claims for damages against the violating state had been recognised in practice under international law.

Also a claim for damages according to § 839 BGB in connection with article 34 GG 14
do not exist. It could remain open whether German official liability law was applicable in the main, because a claim would fail in any case because there was no official liability of German officials - in the sense of culpable violations of international humanitarian law - in connection with the air attack on the bridge of Varvarin. According to the law of appeals, the members of the armed forces who were involved in the airspace surveillance lacked the intent required by § 830 BGB (German Civil Code). It had neither been established nor had the complainants offered any evidence that the German authorities had known of an attack on the civilian population or, in any case, of an "indiscriminate attack". Furthermore, the wide scope of assessment granted to the defendants by the Higher Regional Court in drawing up the list of targets, which was only exceeded in the case of complete unjustifiability and manifest violation of international law, was not objectionable. It is consistent with settled case-law that in certain sovereign areas the competent authorities have scope for assessment in respect of certain measures, the factual correctness of which cannot be checked without restriction in the official liability proceedings. The inclusion of the bridge of Varvarin in the list of targets had remained within the scope of this margin of assessment because the infrastructure of a state, such as roads, bridges and telecommunications facilities, is traditionally counted as a military target. In any event, at the time of inclusion in the list of objectives, this assessment was not manifestly unjustifiable or manifestly contrary to international law. Finally, not every NATO member state is liable for the consequences of a joint NATO operation, irrespective of its specific contribution. It can be left open how this is to be assessed for claims under international law; for claims under German law, this is out of the question because of the personal construction of official liability.

d) The complaint lodged by the complainants on II. rejected the Bun- 15
of the Court of Justice as unfounded by the contested order of 18 January 2007.

5. the appellants in points II.33. and II.34. submitted, by letter of 19 January, 16
withdrew its constitutional complaints in 2007.

II.

1. The appellants consider that the contested decisions do not affect their rights in ih- 17
rem's right to a fair trial as well as her fundamental right to equal treatment under Article 101.1 sentence 2 in conjunction with Article 100.2 of the Basic Law.

a) It infringes the right to a fair trial (Article 2(1) in conjunction with Art. 20 18
(3) of the Basic Law), that the Federal Court of Justice imposed on them the burden of proof for the culpable conduct of the Federal Republic of Germany, and that, as numerous victims of a war based on the division of labour, they were required to explain the decision-making processes of the military and politicians of different states involved.

lay. This is de facto impossible due to military secrecy, which is why a reversal of the burden of proof must apply - as is the case in medical liability, product liability or environmental liability law.

b) The second sentence of Article 101(1) in conjunction with Article 100(2) of the Basic Law has been infringed because the 19

The applicant submits that no questions relevant to the decision of the Federal Constitutional Court concerning the existence and scope of broad general rules of international law have been submitted. There were serious doubts as to the interpretation and application of public international law by the non-constitutional courts because they had demonstrated the existence of an individual claim for compensation for damages due to a violation of international law of war. The submission was not excluded by Article 25 sentence 2 of the Basic Law either, because sentence 2 was purely declaratory in so far as the individual-protective character of the general rule of international law was already apparent from it; Article 100.2 of the Basic Law also referred to Article 25 of the Basic Law as such, not only to its sentence 2.

2. The appellants under I. additionally allege infringement of their rights under 20
Article 1 (1) in conjunction with Article 2 (1) GG, Article 2 (2) GG, Article 3 (1) GG, Article 6 (1) GG, Article 19 (4) GG and Article 103 (1) GG.

The contested judgments are arbitrary and infringe Article 19(4) and 21
like Article 103.1 of the Basic Law, because the claim for damages existing under international law and German law had been rejected. The air raid on the Varvarin bridge had violated the protective rights - also under customary law - in favour of civilians under Protocol I. The liability under international law for the violation of international humanitarian law was regulated in Article 3 of the Fourth Hague Convention and in Article 91 of Protocol I and was generally applicable as customary international law. Furthermore, there is a claim for damages under § 823.1 of the Civil Code on account of violation of the fundamental rights under Article 1.1 in conjunction with Article 2.1 of the Basic Law, Article 2.2 of the Basic Law and Article 6.1 of the Basic Law.

3. The complainants in II. further submit, with reference to a 22
In its expert opinion on international law, the Federal Constitutional Court asserts the violation of its rights under Article 2.1 in conjunction with Article 25 GG, Article 14 GG and Article 103.1 GG.

a) Article 2(1) in conjunction with the first sentence of Article 25 of the Basic Law has been infringed by the fact that 23

claims for damages and compensation under customary international law had not been awarded. The attack on the bridge of Varvarin had violated mandatory rules of international humanitarian law - the prohibition of attacks on civil objects, the prohibition of indiscriminate attacks and the rules on the determination of objectives - which were at the same time part of customary international law. The international and national jurisdiction and state practice showed that not only a right of the individual to compliance with international humanitarian law existed, but also an

individual right to compensation for damages and to effective legal protection under customary international law. Against this background, the claims for damages laid down in Article 3 of the Fourth Hague Agreement and Article 91 of Protocol I also protected the individual.

b) There is also a violation of Article 14 of the Basic Law. On the one hand, this was shown by the fact- 24

that claims for damages on the basis of Article 3 of the IV Hague Convention and Article 91 of Protocol I have not been recognised, and secondly by the application and interpretation of the German law on public liability, which is contrary to fundamental rights and international law. Since the claims for damages under international law do not presuppose fault, this must also apply to a German claim to official liability under the principle of friendliness under international law. In any case, the fault of foreign agencies in the air raid on the bridge of Varvarin was attributable to the Federal Republic of Germany. The "need-to-know rule" must not lead to an exculpation of the Federal Republic of Germany, since this would arbitrarily and contrary to the rule of law shift the standards of liability to the disadvantage of the complainants. Nor was any further scope for assessment of the Federal Republic of Germany's participation in the establishment of target lists to be recognised.

c) Finally, Article 103(1) of the Basic Law has been infringed because the Federal Court of Justice in both 25

neither the judgment under appeal nor the order under appeal addressed large parts of its submissions - in particular on the existence of claims under customary international law.

III.

The Federal Government and the Ministry of Justice of North Rhine- 26

Westfalen was given the opportunity to comment. The Federal Ministry of Defence has issued a statement on behalf of the Federal Government in which it has countered the complainants' arguments under international and constitutional law and considers the constitutional complaints to be unfounded in any case. The complainants in II. have replied to this, submitting a supplementary legal opinion.

The files of the main proceedings were submitted to the Federal Constitutional Court 27

gen.

IV.

Proceedings 2 BvR 487/07 have been closed with regard to the complainants in II.33. and 28

II.34. ended with the effective withdrawal of the constitutional complaint (see BVerfGE 106, 210 <213>). Moreover, the constitutional complaints that are joined for joint decision (cf. BVerfGE 15, 303 <305>) are not accepted for decision because the requirements for acceptance under § 93a.2 of the BVerfGG are not met. The constitutional complaints have no prospect of success because - to the extent that they are admissible - they are unfounded according to the standards that have already been sufficiently clarified in the case-law of the Federal Constitutional Court (see in detail under 2.) (cf. BVerfGE 90, 22 <25 f.>).

1. The constitutional complaint of the complainants regarding I. is inadmissible, the Ver- 29

The complainants' constitutional complaint regarding II. is only partially admissible.

a) The complainants' constitutional complaint regarding I. is inadmissible. 30

aa) In the present case, the constitutional complaint has not been substantiated by death 31
of the original complainant. Admittedly, the settlement is generally the consequence of the death of the complainant, because the constitutional complaint serves in principle to enforce highly personal rights (see BVerfGE 6, 389 < 442>; 109, 279 <304>). However, if a complainant dies during pending constitutional complaint proceedings, his or her heirs may continue the constitutional complaint if the original proceedings concerned financial claims (cf. BVerfGE 3, 162 <164>; 23, 288 <300>; 26, 327
<332>; 109, 279 <304>).

bb) However, the constitutional complaint is inadmissible because it was not filed in due time 32
was justified (§ 93.1 sentence 1 of the BVerfGG in conjunction with § 23.1 sentence 2, § 92 of the BVerfGG).

(1) For a timely and legally compliant minimum 33
To substantiate the constitutional complaint, it is necessary to submit the challenged decisions or copies of the challenged decisions within the one-month period of § 93.1 sentence 1 of the BVerfGG or to inform them of their essential content (BVerfG, Order of the Third Chamber of the First Senate of 16 March 2006 - 1 BvR 1311/96 -, NZS 2006, p. 533; cf. also BVerfGE 88, 40 <45>; 93, 266
<288>). It is not sufficient, however, to merely transmit the notice of appeal by fax by the end of the one-month period and to submit the challenged decisions - after expiry of the period - together with the original written pleadings (BVerfG, Order of the Second Chamber of the First Senate of 28 November 2007 - 1 BvR 2755/07
-, juris, paragraph 2; Order of the First Chamber of the Second Senate of 11 May 2005 - 2 BvR 176/05 -, juris, paragraph 3).

(2) The judgment of the Federal Court of Justice of 2 November 2006 was granted to the applicants.
Sergeant Major General I. on 23 November 2006. The period for the substantiation of the constitutional complaint thus ended on 27 December 2006 (§ 93.1 Sätze 1 and 2 BVerfGG, § 222.2 ZPO; see BVerfGE 24, 236 <242 f.>). At this time, the Federal Constitutional Court had only received the fax copy of the statement of complaint, on the last page of which was noted: "Annexes by mail, Annexes 1 - 3: ...". The original written pleading of the constitutional complaint together with these annexes - the challenged decisions - was not received by the Federal Constitutional Court until 30 December 2006, and thus after expiry of the deadline. The essential content of the challenged decisions is also not communicated in the constitutional complaint in such a way that a responsible constitutional review of them would be possible. The constitutional complaint was therefore not substantiated within the deadline and is therefore inadmissible.

b) The complainants' constitutional complaint regarding II. is in part inadmissible. 35
Her assertion that Article 14.1 of the Basic Law was violated by the fact that the challenged decisions do not make German official liability law compatible with

international law.

The minimum requirements for the statement of reasons resulting from Paragraph 23(1), second sentence, and Paragraph 92 of the BVerfGG are not met by the Federal Republic of Germany.

aa) The interpretation and application of simple legal standards is a matter for the technical 36
courts. They can only be reviewed by the Federal Constitutional Court - apart from violations of the prohibition of arbitrariness - to see whether they contain errors of interpretation that are based on a fundamentally incorrect view of the significance of the fundamental right concerned, in particular of the scope of its protection. This is the case if the interpretation of the provisions made by the non-constitutional courts does not take sufficient account of the scope of the fundamental right or, as a result, leads to a disproportionate restriction of the fundamental right's freedom (see BVerfGE 18, 85 <92 et seq., 96>; 85, 248 <258 et seq.; 87, 287 <323>).

bb) The complainants in II. set out these conditions with regard to the claims made by 37
the applicants' allegations of infringement of Article 14(1) of the Basic Law are not sufficiently substantiated. It does not follow from their submission - which would be a precondition for a possible violation of Article 14.1 of the Basic Law - that international law requires a corresponding reformulation of German public liability law to this effect; without a corresponding requirement under international law, on the other hand, an interpretation of German public liability law that is consistent with international law is out of the question. In addition, the second complainants have not sufficiently substantiated the argument that it is arbitrary under German law to make official liability claims for NATO air operations that are conducted on a part-time basis dependent on the culpable conduct of German officials or their culpable involvement under § 830 of the Civil Code, which is contrary to their official duties.

2. The constitutional complaint of the complainants regarding II. is otherwise unfounded. 38
in so far as it concerns claims under international law.

a) The organisation of the procedure, the determination and assessment of the facts 39
The interpretation of ordinary law and its application to the individual case are primarily a matter for the courts with general jurisdiction and are not subject to review by the Federal Constitutional Court; the Federal Constitutional Court can only intervene in the case of a violation of specific constitutional law in response to a constitutional complaint (BVerfGE 18, 85 <92 f.>; stRspr). The non-constitutional courts must also apply and interpret the rules of international law and international treaty law themselves. The review of such decisions by the constitutional court follows the general standards for the review of court decisions that apply to them (cf. BVerfGE 18, 441 <450>; 59, 63
<89>; 94, 315 <328>; 99, 145 <160>; 118, 124 <135>).

b) The complainants in II. are protected in their fundamental right under Article 2(1) in conjunction with Article 40
Article 25 of the Basic Law by the fact that the challenged decisions do not infringe claims for damages and compensation under customary international law

have acknowledged.

aa) Although the constitutional complaint may in principle be asserted 41
that civil court rulings were not part of the constitutional order within the meaning of Article 2.1 of the Basic Law because they would have disregarded rules of customary international law that are considered to be part of federal law pursuant to Article 25 of the Basic Law (see BVerfGE 31, 145 <177>; 66, 39 <64>; BVerfGK 13, 246 <252>). Contrary to what the complainants in II. claim, however, neither in 1999 nor at present was and is there a general rule of international law according to which the individual is entitled to damages or compensation against the responsible state in the case of violations of international humanitarian law. Such claims against free nationals on account of actions of a state in violation of international law are - as before - in principle only due to the home state of the injured party or are to be asserted by the latter.

(1) The general rules of international law within the meaning of Article 25 of the Basic Law are the Re- 42
of universally applicable customary international law, supplemented by general legal principles handed down from the national legal systems (cf. BVerfGE 15, 25 <32 ff.>; 16, 27 <33>; 23, 288 <317>; 109, 13 <27>; 118, 124 <134>). The genus-customary law is the custom behind which the conviction of a legal obligation stands (see Permanent International Court of Justice, S.S. Lotus, 1927 P.C.I.J. <ser. A> No. 10 <Sept. 7>, marginal no. 44: "usage generally accepted as expressing principles of law"). For the emergence of customary international law, an adequate state practice, i.e. a permanent and uniform practice with widespread and representative participation (cf. BVerfGE 94, 315 <332>; 96, 68 <87>), as well as the opinio iuris sive necessitatis behind this practice - the view that it is necessary to act within the framework of what is required and permitted or necessary under international law (cf. BVerfGE 96, 68 <87>) - are fundamentally necessary.

(2) Although international and national practice allows for isolated cases 43
in which the victims of armed conflicts have been granted compensation by the responsible state (see Hencka- erts/Doswald-Beck, Customary Internationa l Humanitarian Law, Vol. I, 2005, p. 541 ff.). However, a condensation of these individual cases into a general rule of customary international humanitarian law, according to which individuals are entitled to claim damages or compensation against the state responsible in the event of violations of international humanitarian law, cannot be ascertained - at least not at present (see Heintschel von Heinegg, in: Heintschel von Heinegg et al.>, Entschädigung nach bewaffneten Konflikten, 2003, p. 1 <25>; Dörr, JZ 2005, pp. 905 <909 f.>; Hofmann, in: Festschrift für Christian Tomuschat, 2006, p. 341 <356>; von Woedtke, Die Verantwortlichkeit Deutschlands für seine Streitkräfte im Auslandseinsatz und die daraus daraus daraus resultierenden Schadensansprüche von Einzelpersonen als Opfer deutscher Militärhandlungen, 2010, pp. 290 ff). The International Court of Justice has expressly left this question open (ICJ, judgment of 3 February 2012, Germany

v. Italy, Jurisdictional Immunities of the State, Rn. 108). Nationale Gerichte haben die

claims of war victims based on international law were predominantly rejected (see von Woedtke, loc.cit., pp. 272 ff. with further references). Moreover, in Article 33.2 of its draft on the responsibility of states for acts contrary to international law (Annex to Resolution 56/83 of the United Nations General Assembly of 12 December 2001), in which it codified rules already applicable in state practice, the United Nations Commission on International Law expressly excluded individual claims directly directed at states from the responsibility of states under international law.

(bb) In the absence of the general information alleged by the complainants in II. 44
n accordance with the rule of customary international law, it is open to question whether they, as Serbian nationals who were outside the territory of the Federal Republic of Germany at the time of the attack on the bridge at Varvarin, fall within the scope of application of Article 25 sentence 2, second half-sentence, of the Basic Law.

(cc) Article 3 of the IV Hague Agreement and Article 91 of Protocol I do not establish 45
direct individual claims for damages or compensation in the case of violations of international humanitarian law, which is why it remains open whether these provisions have acquired customary international law validity (see Kalshoven, ICLQ 40 <1991>, p. 827 <836>; Green, The contemporary law of armed conflict,
2. Aufl. 2000, p. 277 f., 281 ff., 289 f.) and their application in the context of Article 2.1 in conjunction with Article 25 of the Basic Law can be reviewed by the constitutional court.

(1) Article 3 of the IV Hague Convention does not, in principle, provide for an individual 46
It only reinforces the general principle of international law (see Article 1 of the Articles on the responsibility of States for acts contrary to international law, submitted by the United Nations Commission on International Law, Annex to Resolution 56/83 of the General Assembly of the United Nations of 21 December 1996, which provides for a right to compensation, but only reinforces the general principle of international law (see Article 1 of the Articles on the responsibility of States for acts contrary to international law, submitted by the United Nations Commission on International Law, Annex to Resolution 56/83 of the General Assembly of the United Nations of 21 December 1996, Annex to Resolution 56/83 of the General Assembly of the United Nations of 21 December 1996, Annex to Resolution 56/83). This claim for damages exists only in the international legal relationship between the affected States and differs from the primary claim of the affected persons for compliance with the prohibitions of international humanitarian law (BVerfGE 112, 1 <32 f.>; BVerfGK 3, 277 <283 f.>). Admittedly, the history of the origin of the provision shows that it is intended to protect the individual and is thus indirectly also intended to protect individual rights. However, it does not follow from this that Article 3 of the Fourth Hague Agreement could be considered as the basis of a direct claim for damages and compensation against the state by the individuum concerned, which is originally a claim under full nuclear law (see BVerfGE 112, 1 <32>; BVerfGK 7, 303 <308>; Kalshoven, loc.cit., p. 827 <837>). This is contradicted on the one hand by the wording according to which a warring party is

obliged to pay damages in the event of a violation of the Hague Convention on Land Warfare - attached to the IV Hague Agreement as an annex - "in a given case". In view of this restrictive addition, Art. 3 of the IV Hague Agreement is not enforceable ("self executing"), so that an understanding of the regulation as a basis for individual claims is not possible.

fails due to their lack of direct applicability (BVerfGK 7, 303
<308>). On the other hand, the individual was not qualified as a subject of international law according to the traditional concept of international law (BVerfGK 7, 303 <308>; see Mosler, Za- öRV 22 <1962>, p. 1 <23, 29 ff.>). Notwithstanding the - constantly progressing - developments at the level of human rights protection that have led to the recognition of a partial subjectivity of the individual under international law and to the establishment of contractual individual complaints procedures, a comparable development in the area of secondary claims cannot be demonstrated. Claims for damages for acts of a state against foreign nationals that are contrary to international law are in principle still only available to the home state (BVerfGK 7, 303 <308>).

(2) Article 91 of Protocol I also does not allow for individual compensation for damage - 47
or compensation for violations of international humanitarian law. Despite the developments that took place in the period between the Fourth Hague Convention of 1907 and Protocol I of 1977 on the level of human rights protection, the wording of the provision is not oriented towards corresponding formulations in human rights treaties that expressly refer to an individual claim for damages or compensation (see, for example, Article 5.5 of the ECHR), but is almost identical to that of Article 3 of the Fourth Hague Convention (see Stammler, Der Anspruch von Kriegsopfer auf Schadensersatz, 2009,
p. 114 ff). Even according to the understanding of international law prevailing in the 1970s, violations of international humanitarian law had to be remedied at intergovernmental level (see Hofmann, loc. cit., p. 350). These aspects only permit the conclusion that Article 91 of Protocol I also does not give rise to any claims for damages or compensation by the individual.

c) The complainants under II. are also not liable for failure to make a submission to 48
the Federal Constitutional Court for the Verification of International Law violates its fundamental right under Article 101.1 sentence 2 in conjunction with Article 100.2 of the Basic Law.

aa) (1) The Federal Constitutional Court is a statutory judge in terms of the 49
Article 101.1 sentence 2 of the Basic Law, also to the extent that it decides in the referral procedure pursuant to Article 100.2 of the Basic Law (see BVerfGE 18, 441 <447>). For this reason, a person affected can, in principle, be deprived of his or her statutory judge by the omission of a submission required under Article 100.2 of the Basic Law (cf. BVerfGE 64, 1 <12 f.>; 96, 68 <77>;
BVerfGK 9, 211 <213>; 13, 246 <250>; 14, 222 <226>).

(2) A submission under Article 100 (2) of the Basic Law is already required if the recognizable 50
Even if the court itself does not have any doubts when examining the question whether and to what extent a general rule of international law applies (cf. BVerfGE 23, 288 <316>; 64, 1 <14 f.>; 75,
1 <11>; 96, 68 <77>). Not the recognizing court, but only the Federal Constitutional Court has the authority to clear up existing doubts itself. Serious doubts already

exist when the court is convinced of the opinion of a constitutional court.

or from the decisions of high German, foreign or international courts or from the teachings of recognised authors of international law (cf. BVerfGE 23, 288 <319>; 96, 68 <77>).

bb) According to these standards, a submission to the Federal Constitutional Court 51
The Landgericht Bonn, the Oberlandesgericht Köln and the Bundesgerichtshof were not obliged to refer the case to the Bundesverfassungsgericht for a ruling on the existence of a general rule of international law according to which individuals have an indirect claim for damages and compensation against the State responsible in the event of violations of international humanitarian law. Such a submission would have been inadmissible because there were no doubts about the existence of such a general rule of international law. As explained above (see IV.2.b.), according to the current understanding of international law, in the case of violations of international humanitarian law, the individual has no claim under customary international law for damages or compensation against the responsible state. A norm verification procedure would not have been able to change this, because the Federal Constitutional Court is not called upon in the context of the procedure under Article 100.2 of the Basic Law to further develop customary international law (see BVerfGE 118, 124 <139>; BVerfG, Order of the Second Chamber of the Second Chamber of the Federal Constitutional Court of Germany
Senate of 12 October 2011 - 2 BvR 2984/09, 2 BvR 3057/09, 2 BvR 1842/10 -,
NJW 2012, P. 293 <295>).

3. In so far as the appellants in II. object to the rejection of claims for damages- 52
If the complainants turn to the Federal Constitutional Court for a decision on the basis of their claims to a reduction of the burden of proof pursuant to § 839 of the Civil Code in conjunction with Article 34 of the Basic Law, the constitutional complaint cannot be accepted for decision because it is clearly foreseeable that the complainants would not be successful in the end even in the case of a referral pursuant to § 95.2 of the BVerfGG (§ 93a.2 letter b of the BVerfGG; cf. BVerfGE 90, 22 <25 f.>). Although there are constitutional objections to the granting of a margin of assessment in favour of the Federal Government in the selection of military targets by the Higher Regional Court and the Federal Court of Justice, it can be ruled out under the circumstances of the present case that taking these objections into account could help the complainants' complaint to succeed (a). The same applies with regard to the distribution of the burden of proof and the distribution of the burden of proof challenged by the complainants (b). It can therefore be left open whether German public liability law applies at all to cases such as the present one (on the state of the dispute see Schmahl, ZaöRV 2006, p. 699
<705 f.>; Dutta, AöR 133 <2008>, p. 191 <209>; Raap, NVwZ 2013, p. 552 <554>).

a) Although the domestic validity of international law, which governs the judges, is 53
pursuant to Article 20.3 of the Basic Law (see Röben, Außenverfassungsrecht, 2007, p. 146; Huhn, Amtshaftung im bewaffneten Auslandseinsatz, 2010, p. 185; Dutta, AöR 133
<2008>, p. 191 <215>), as well as the guarantee of effective legal protection under

Article 19.4 sentence 1 of the Basic Law, fundamentally contradict the granting of non-justifiable scope for assessment by the executive. Above all, the requirement of effective legal protection regularly results in an obligation on the courts to review contested state measures

in factual and legal terms; this excludes in principle the binding of the judiciary to factual or legal findings and evaluations by other authorities with regard to what is legal in the individual case (cf. BVerfGE 15, 275 <282>; 61, 82 <110 f.>; 84, 34 <49>; 84, 59 <77>; 101, 106 <123>; 103, 142 <156>; 129, 1 <20>). This also applies to the assertion of secondary claims. In the public liability proceedings, too, the civil court dealing with the action for public liability must therefore in principle independently and fully review the measure objected to as contrary to public duty (see Federal Court of Justice, judgment of 21 April 1988 - III ZR 255/86 -, NJW 1989, p. 96 <97>).

aa) Although the legislature may, within the 54

However, there is no apparent norm in the present context that provides for a breakthrough of the principle of complete judicial review of administrative decisions (see BVerfGE 129, 1 <21 et seq. It has not been conclusively clarified to what extent the scope for administrative decisions that can only be reviewed to a limited extent by the courts is permissible by virtue of the constitution even without a statutory basis. At best, they are to be considered for limited areas, namely if undefined legal concepts are so vague because of the high complexity or particular dynamics of the regulated matter and their concretisation in the follow-up to the administrative decision is so difficult that their judicial review would reach the functional limits of case-law (cf. BVerfGE 84, 34 <50>; 129, 1 <23>). Such functional limits are namentlich for the political discretion in the area of foreign force (see BVerfGE 40, 141 <178>; 55, 349 <365>) and in questions of defence policy
(see BVerfGE 68, 1 <97>).

In the present case, the granting of a non-justifiable evaluation game 55

In the case of the Federal Government, the creation of a new federal state in the Federal Republic of Germany in the Federal Republic of Germany is constitutionally unjustifiable. The drawing up of target lists and the non-exercise of a veto right against the inclusion of a specific target in these lists and the classification of an object as a legitimate military target are not political decisions that would be beyond judicial review from the outset (see Stammler, loc. cit., p. 131; Huhn, loc. cit.) It is also not apparent that the clarification of this legal question would push the courts to their functional limits. Although the rules of international law at issue here use undefined legal terms to describe what can be a legitimate military objective, their interpretation and application can certainly be reviewed from a factual and legal perspective on the basis of objective criteria (see Dutta, AöR 133 <2008>,
p. 191 <225>; von Woedtke, loc.cit., p. 336; critically Huhn, loc.cit.) The Higher Regional Court and the Federal Court of Justice have essentially based their decisions on the Federal Government's discretion in foreign and defence policy, without in particular going into the facts of international law to be taken into consideration here and explaining to what extent these judicial reviews are not accessible, and may therefore be subject to a constitutionally incorrectly abridged review standard

out. However, this does not need to be further elaborated at this point.

(bb) The fact cannot be disregarded in this case that the creation of 56
target lists in the present case is part of a multi-stage decision-making process. With the "precautionary" inclusion of the bridge of Varvarin in target lists, as the Higher Regional Court found, it had not yet been decided that it was a legitimate military target within the meaning of Article 51 of Protocol I; according to the Higher Regional Court, the concrete circumstances of a possible attack on the bridge were no longer at issue in the selection of the target. In the constitutional complaint proceedings, the Federal Government confirmed, without the complainants having opposed this, that the lists of targets adopted by the North Atlantic Council of NATO with the participation of the Federal Republic of Germany contained only a general assessment as to which objects or types of objects would in principle be suitable for destruction in order to achieve the political objectives pursued by NATO of preventing further human rights violations and averting a humanitarian disaster by the Serbian side giving in. A final legal assessment as to whether each of these was a legitimate military objective within the meaning of Article 51 of Protocol I was not associated with the inclusion of an objective in the list of objectives. The final examination of the individual case - also required by Article 51 of Protocol I - was not carried out at the level of the North Atlantic Council, but in preparation for the concrete attack at a subordinate military level. At the stage of the measure criticised as being in breach of official duty - the inclusion of the bridge of Varvarin in the list of targets without contradiction - no final decision on the legality of the concrete attack on the bridge was therefore taken and could not be taken.

The Higher Regional Court has ruled in favour of the complainants on the fundamental 57
The Federal Government could have assumed the possibility that the Federal Government had been able to establish official liability by not exercising its veto right when drawing up the target lists and the associated definition of certain targets. It then - on the basis of its limited audit approach - denied that the defendant Federal Republic of Germany had exercised the scope for assessment and discretion to which it was entitled in an obviously arbitrary manner or in a manner that was obviously contrary to international law and could no longer be understood from a reasonable point of view, and made the following findings in this regard: Bridges such as the bridge crossing the Morava River here in Varvarin are, in the case of armed conflicts or wars, abstractly always potential military targets, either for strategic or tactical reasons. Moreover, although the bridge in question was certainly not a major traffic route, it was one which, in conjunction with the road network running south, would make it easy to reach Kosovo, which is not too far away. The bridge was therefore potentially suitable, at any rate in the event of the destruction of other - in particular the primarily usable - traffic routes, for at least smaller troop and material transports

with a view to Kosovo. The mere inclusion in a list of targets had certainly not obviously contradicted (martial) international law, since the bridge had to be regarded as a military target in any case.

58 If the case were to be referred back to the Court of First Instance, the latter would have In the light of the above, it must be assumed that the individual case examination required under international law is not already carried out at the level of drawing up target lists. Accordingly, a different standard of care applied from the outset to the preparation of the target lists than to the concrete deployment decision. According to the state of facts and the state of dispute, it is obvious that this standard of due diligence does not differ in the result from the one developed by the Higher Regional Court and the Federal Court of Justice - based on an approach that is questionable from a constitutional and legal point of view. It is therefore foreseeable that in the case of a referral back, the courts will, even without recourse to a scope of assessment of the Federal Government, deny an official duty to draw up the target list because when the target list was drawn up it seemed possible that the concrete circumstances at the time of the attack would allow the destruction of the bridge of Varvarin in a manner that is in conformity with international law.

59 b) The decisions of the Superior Court of Justice also meet with constitutional concerns. The Federal Court of Justice and the Federal Court of Justice, in so far as they have ordered the complainants to give evidence on the subjective facts of § 830 of the Civil Code and, if necessary, to prove this evidence, while at the same time, with regard to the defendant Federal Republic of Germany, it is conceded that in the present official liability proceedings it cannot be "expected" of it to give more evidence than has been given on the military events concerning the attack on Varvarin and its contribution to it. In this respect, however, there is also no disadvantage that would support the acceptance of the constitutional complaint (§ 93a.2 letter b of the BVerfGG).

60 (aa) The primary task of civil law is to prevent conflicts of interest between legal entities of equal legal status (see BVerfGE 30, 173 <199>). The realisation of this goal is to be made possible by civil procedural law by serving to bring about decisions that are lawful and correct from this point of view and within the framework of this correctness (cf. BVerfGE 42, 64 <73>; 52, 131 <153>). There are no constitutional objections to the basic concept of the civil procedural discovery procedure, not even to the extent that the parties' obligation to produce evidence, which is embedded in this procedure, is called into question with the regulation of the burden of proof that supplements it (cf. BVerfGE 52, 131 <73> 52, 131 <153>).

61 However, the rules on the liability of the State for the consequences of an obligatory even if the disputes concerning them have been referred to the ordinary courts and the Civil Procedure Code therefore applies (Article 34 sentence 3 of the Basic Law) - to public law (see BVerfGE 61, 149 <176>; BVerfG, Order of the First Chamber of the First Senate

of 26 August 2002 - 1 BvR 947/01 -, NJW 2003, p. 125). The law on official liability does not serve to balance the interests of private individuals (BVerfG, resolution of the
1. Chamber of the First Senate of 26 August 2002, loc. cit.), but to ensure a minimum level of integrity of private rights vis-à-vis public authorities (Höfling, VVDStRL 61 <2002>, p. 260 <269 ff.>). If duties or obligations are therefore imposed on the citizen in the context of a public liability trial, this is done with a view to a legal relationship characterised by sovereignty, in which the fundamental rights apply directly and without restriction (BVerfG, decision of the First Chamber of the First Senate of 26 August 2002, loc. cit.
<126>). Even if the obligation to treat the law of evidence fairly, in particular the rules on the burden of proof in civil proceedings, in turn already follows from the principle of the rule of law (cf. BVerfGE 52, 131 <145>; 106, 28 <48>), requirements for the court proceedings that go beyond this may, however, arise above all from the fundamental rights (cf. BVerfGE 97, 169 <179>; 101, 106
<122>; 106, 28 <48>); no practically insurmountable obstacles may be put in the way of the judicial enforcement of fundamental rights positions (cf. BVerfGE 89, 276 <289>). The distribution of the burden of demonstration and proof must therefore not allow the protection of fundamental rights guarantees brought about by provisions of ordinary law to run dry (BVerfG, Order of the Second Chamber of the First Chamber of 6 October 1999 - 1 BvR 2110/93 -, NJW 2000, p. 1483 <1484>). In this respect, procedural law offers suitable procedures for a graduated burden of proof and demonstration (see BVerfGE 97, 169 <179>; BVerfG, Order of the Second Chamber of the First Senate of 6 October 1999, loc. cit.)

bb) The Higher Regional Court and the Federal Court of Justice have dealt with these requirements. 62
and, without going into the differentiation required in principle, a decision on the burden of proof was taken to the detriment of the complainants.

The burden of proof and the burden of proof is shared between the complainants 63
in any case, their fundamental rights under Article 14.1 of the Basic Law are affected (see BVerfGE 112, 93 < 107> with further references). A distribution of the burden of proof that would ultimately render void the protection of fundamental human rights content brought about by civil law provisions would therefore be constitutionally inadmissible (see Huster, NJW 1995, p. 112 <113>; BVerfG, Order of the Second Chamber of the First Senate of 6 October 1999, loc. cit.)

With regard to the provisions of § 839 BGB in conjunction with Art. 34 64
GG, the aggrieved party bears the full burden of proof for all the constituent elements of the offence justifying the claim (see Wurm, in: Staudinger, Kommentar zum Bürgerlichen Gesetzbuch, Neubearbeit- tung 2007, § 839 marginal no. 399 et seq.) However, it is recognised in the case-law of the Federal Court of Justice that the party not burdened with the burden of presentation and evidence can have a so-called secondary burden of presentation if the party required to present the

evidence is outside the course of events to be presented by it and has no close knowledge of the relevant facts, while the opposing party has no such knowledge.

and further details are reasonable (e.g. BGH, judgement of 11 June 1990 - II ZR 159/89 -, NJW 1990, p. 3151 <3152>; judgement of 24 November 1998 - VI ZR 388/97 -, NJW 1999, p. 714 <714 f.>; Judgment of 14 June 2005 - VI ZR 179/04 -, NJW 2005, p. 2614 <2615 f.>). In these cases, the party not required to provide information must declare itself to the factual presentation of the other party and in our circumstances disclose its knowledge that was not accessible to the other party. The Federal Court of Justice has also applied these principles in the official liability proceedings. In this respect, it decided that it must lead to a proper modification and limitation of the burden of proof and demonstration in the public defences proceedings - possibly even to a reversal of the burden of proof - if a party affected by a breach of public duties is outside the course of events to be presented by it and therefore does not have and cannot have access to internal administrative information (see BGHZ 129, 226 <234>).

It is primarily the task of the civil courts to enforce the constitutional minimum of 65 to develop requirements for the effective enforcement of legal positions protected by fundamental rights and to concretize them in procedural law. This includes the development of principles on the question of whether in constellations such as the present one, in which the complainants' need to prove that they were unintentionally affected by the fighting of civilians cannot be dismissed, the principles on the secondary burden of proof must always be applied constitutionally, or whether it may even be appropriate to reverse the burden of proof. The Federal Court of Justice, in particular, does not go into these questions in more detail - which, if at all, is likely to be partly based on the appeal - but bases its decision on the principles generally applicable in public liability law for the burden of proof and demonstration. This meets with constitutional reservations, in particular for the reason that, in favour of the defendant Federal Republic of Germany, aspects of reasonableness are taken into account without further ado - not unlike in proceedings between private parties. However, a further discussion of the associated questions is not necessary.

(cc) In the present proceedings, a 66
result can also be excluded if the court dealing with the case after referral back imposes a secondary burden of proof on the defendant Federal Republic of Germany. According to § 830 BGB liability is only possible if German officials would have known about the concrete circumstances of the attack. The defendant refuted this knowledge by referring to the "need-to-know rule" according to which it is military practice in NATO operations that only the armed forces directly involved in the operation receive the information necessary for the operation. It is not apparent what further information the Federal Republic of Germany should or could have presented in order to demonstrate its lack of knowledge or to enable the complainants to present it properly.

4. The right of the 67

The second complainant's right to be heard has not been infringed. Article 103.1 of the Basic Law only obliges the court to take note of and consider the submissions of one of the parties to the proceedings (see BVerfGE 42, 364 <367 f.>; stRspr). However, it does not establish either an obligation of the court to attach the correct significance to the submissions of the parties in substantive law (cf. BVerfGE 76, 93 <98>) or an obligation to follow the legal opinion of a party (cf. BVerfGE 64, 1 <12>; 87, 1 <33>). Nor does Article 103.1 of the Basic Law imply an obligation on the courts, especially in the case of decisions in the last instance, to expressly refer to every submission (cf. BVerfGE 86, 133 <146> w.w.N.; stRspr). Measured against this, the finding of the Federal Court of Justice that other bases of claims under international law - with the exception of Article 3 of the Fourth Hague Agreement and Article 91 of Protocol I - are not evident, makes it sufficiently clear that the complainants' submission on II.

5. Pursuant to § 93d.1 sentence 3 of the BVerfGG, no further justification is required. 68
hen.

V.

The application for legal aid and order the defendant to pay the costs. 69
walt D. is to be rejected in accordance with § 114 ZPO.

This decision is final. 70

VoßkuhleGerhardtHuber

Federal Constitutional Court, Order of the 1st Chamber of the Second Senate of 13 August 2013 - 2 BvR 2660/06

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